

26CV00133 Daysia Mo'Nay Lewis v. REM California, LLC

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-08-12

Motion: Defendant's Motion to Compel Arbitration

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Tentative Ruling: Daysia Mo'Nay Lewis v. REM California, LLC

Case Number

26CV00133

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 08/12/2026 - 10:00

Nature of Proceedings

Defendant's Motion to Compel Arbitration

Tentative Ruling

For Plaintiff Daysia Mo'Nay Lewis: Gregory P. Wong, Lyfe Law, LLP

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RULING

1. Defendant's Motion to Compel Arbitration is granted.

2. This matter is stayed pending the completion of arbitration.
3. The Court set a Status Report Conference for 8:30 am on April 28, 2027, with status reports due one week in advance.
4. The Court anticipates the binding arbitration will have been completed and a dismissal of this case will have been filed by that date; if not the Court will inquire why not?
5. The jury trial date of 5/12/27, the MSC date of 4/30/27, and the final CMC date of 1/13/27 are all vacated.

Background

This action commenced on January 8, 2026, by the filing of the complaint by Plaintiff Daysia Mo'Nay Lewis ("Plaintiff") against Defendant REM California, LLC ("REM" or "Defendant") for: (1) Disability Discrimination; (2) Failure to Accommodate Disability; (3) Failure to Engage in Good Faith Interactive Process; and (4) Wrongful Termination in Violation of Public Policy.

As alleged in the complaint:

Plaintiff was employed by Defendant as a direct support professional from October 16, 2023, through January 21, 2025, when her employment was involuntarily terminated. (Compl., ¶ 13.)

On December 27, 2025, Plaintiff injured her back while lifting a patient from her wheelchair to the toilet, which resulted in a physical disability related to her nervous and musculoskeletal systems that limited her in the life activities of lifting and working. (Compl., ¶ 14.)

Plaintiff felt continuous back pain and called Sedgwick to inform them of the pain she was in and was told to ice her back and take pain medication. (Compl., ¶ 14.) [Note: Plaintiff does not identify who or what Sedgwick is in relation to this action.] Plaintiff was still feeling intense back pain and was sent to see a medical provider on January 16, 2025, and took off three days of work from January 13, 2025, to January 17, 2025. (Ibid.) After seeing a medical provider, Plaintiff was given restrictions of no lifting, carrying, pushing, or pulling over 10 pounds, no prolonged stooping or bending, that she must be able to alternate sitting and standing, no awkward positions, and no use of a Hoyer Lift. (Ibid.)

Plaintiff sent her request for disability accommodation to her supervisors on the same day she received the restrictions, and Plaintiff's supervisor asked Plaintiff what day she would like to return to work, which was puzzling to Plaintiff because the doctor's note stated that Plaintiff was immediately able to return to work with the requested restrictions. (Compl., ¶ 15.) Plaintiff's supervisors told Plaintiff to come into the office on January 21, 2025, and, when she did so, she was immediately fired. (Ibid.)

On May 15, 2026, REM filed the present motion to compel arbitration based on an agreement to do so signed by both parties.

On 8/6/26 Defendant filed a Notice of Plaintiff's Non-oppositon to Defendant's Motion to Compel Arbitration.

Analysis

"[T]he Legislature has expressed a 'strong public policy in favor of arbitration as a speedy and relatively inexpensive means of dispute resolution.' [Citations.] Consequently, Courts will 'indulge every intendment to give effect to such proceedings.'

[Citations.]” (Mancharsh v. Heily & Blase (1992) 3 Cal.4th 1, 9.)

“California law, like federal law, favors enforcement of valid arbitration agreements.” (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 97.)

“Under both federal and California state law, arbitration is a matter of contract between the parties.” (Badie v. Bank of America (1998) 67 Cal.App.4th 779, 787.)

Arbitration agreements are valid and enforceable under both California and Federal Law. “A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (Code Civ. Proc., § 1281.)

“The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence.” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 164.)

Existence of the Arbitration Agreement

“General principles of contract law determine whether the parties have entered a binding agreement to arbitrate.” (Craig v. Brown & Root, Inc. (2000) 84 Cal.App.4th 416, 420.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

The arbitration agreement provides, in pertinent part:

“This Agreement is governed by the Federal Arbitration Act, 9 U.S.C. § 1 et seq. and evidences a transaction involving commerce. Except as it otherwise provides, this Agreement applies to any dispute arising out of or related to Employee’s (sometimes also referred to as ‘you’ or ‘your’) application or selection for employment, employment, and/or termination of employment with the Company (specifically, the applicable corporate entity that is a direct or indirect subsidiary of National Mentor Holdings, LLC that employs you on a local level) (the “Company”). Except as otherwise provided in this Agreement, this Agreement applies to any dispute, past, present, or future, that the Company may have against you or that you may have against: (1) the Company; (2) its officers, directors, principals, shareholders, members, owners, employees, or agents; (3) the Company’s benefit plans or the plan’s sponsors, fiduciaries, administrators, affiliates, or agents; and (4) all successors and assigns of any of them. Each and all of the entities or individuals listed in (1) through (4) of the preceding sentence can enforce this Agreement. All disputes covered by this Agreement will be decided by a single arbitrator through final and binding arbitration and not by way of Court or jury trial. Nothing contained in this Agreement shall be construed to prevent or excuse you or the Company from utilizing the Company’s existing internal procedures for resolution of complaints, and this Agreement is not intended to be a substitute for the utilization of such procedures.

Except as it otherwise provides, this Agreement is intended to apply to the resolution of disputes that otherwise would be resolved in a Court of law or before a forum other than arbitration, including without limitation, to disputes arising out of or relating to the application for employment, background checks, privacy, employment relationship, or the termination of that relationship (including post-employment defamation or retaliation), trade secrets, unfair competition, compensation, classification, minimum wage, expense reimbursement, overtime, meal periods and rest breaks, or retaliation, discrimination, or harassment and claims arising under the Fair Credit Reporting Act, Defend Trade Secrets Act, Civil Rights Act of 1964, 42 U.S.C. § 1981, Rehabilitation Act, Civil Rights Acts of 1866 and 1871, Civil Rights Act of 1991, 8 U.S.C. § 1324b (unfair immigration related practices), 41 U.S.C. § 4712, Pregnancy Discrimination Act, Equal Pay Act, Americans With Disabilities Act, Age Discrimination in Employment Act, Older Workers Benefit Protection Act, Occupational Safety and Health Act, Family and Medical Leave Act, Fair Labor Standards Act, Employee Retirement Income Security Act (except for claims for employee benefits under any benefit plan sponsored by the Company and covered by the Employee Retirement Income Security Act of 1974 or funded by insurance), Affordable Care Act, Genetic Information Non-Discrimination Act, Uniformed

Services Employment and Reemployment Rights Act, Worker Adjustment and Retraining Notification Act, Consolidated Omnibus Budget Reconciliation Act of 1985, the False Claims Act, and state statutes or regulations, if any, addressing the same or similar subject matters, and all other federal or state legal claims (including without limitation torts) arising out of or relating to your application, selection, employment, or the termination of employment.” (Varshay decl., ¶ 3 & Exh. A, ¶ 1.)

The arbitration agreement is signed by Plaintiff and the CEO of the company.

REM has provided uncontradicted evidence that the parties entered into a written agreement to arbitrate claims, including the ones now brought by Plaintiff.

Federal Arbitration Act

“The party asserting the FAA bears the burden to show it applies by presenting evidence establishing the contract with the arbitration provision has a substantial relationship to interstate commerce.” (Carbajal v. CWPCS, Inc. (2016) 245 Cal.App.4th 227, 234.) “In determining whether the employment agreement involved interstate commerce, the parties’ subjective intent is not the determining factor. “ ‘[E]videncing a transaction involving commerce’ ” (9 U.S.C. § 2) simply means that “ ‘the ‘transaction’ in fact ‘involv[e]s’ interstate commerce, even if the parties did not contemplate an interstate commerce connection.’ ” [Citation.]” (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1286.)

The United States Supreme Court has “interpreted the term ‘involving commerce’ in the FAA as the functional equivalent of the more familiar term ‘affecting commerce’—words of art that ordinarily signal the broadest permissible exercise of Congress’ Commerce Clause power. [Citation.]” (The Citizens Bank v. Alafabco, Inc. (2003) 539 U.S. 52, 56.) Under this broad interpretation, “application of the FAA [is not] defeated because the individual [transaction], taken alone, did not have a ‘substantial effect on interstate commerce.’ [Citation.] Congress’ Commerce Clause power ‘may be exercised in individual cases without showing any specific effect upon interstate commerce’ if in the aggregate the economic activity in question would represent ‘a general practice . . . subject to federal control.’ [Citations.] Only that general practice need bear on interstate commerce in a substantial way. [Citations.]” (Id. at pp. 56-57.)

In the absence of a substantial relationship to interstate commerce “the language of the Agreement, not an analysis of interstate commerce, dictates the applicable law.” (Valencia v. Smyth (2010) 185 Cal.App.4th 153, 179.)

Here, the parties entered into an agreement that any disputes will be determined by arbitration under the FAA.

“In matters in which the FAA applies, it preempts Labor Code section 229, requiring arbitration of claims that otherwise could be resolved in Court.” (Performance Team Freight Systems, Inc. v. Aleman (2015) 241 Cal.App.4th 1233, 1240.)

The FAA governs the agreement, and arbitration is not barred by either section 229 or 432.6 of the Labor Code.

Unconscionability

“Unconscionable arbitration agreements are not enforceable.” (Wherry v. Award, Inc. (2011) 192 Cal.App.4th 1242, 1245.) “To be voided on this ground, the agreement must be both procedurally and substantively unconscionable.” (Ibid.) Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power: substantive unconscionability on overly harsh or one-sided results. (Sonic-Calabasas A, Inc. v. Moreno (2013) 57 Cal. 4th 1109.) “But they need not be present to the same degree.” (Armendariz v. Foundation Health Psychcare Services, Inc., supra, 24 Cal.4th at p. 114.) Rather, the Court invokes a “sliding scale” to determine unconscionability: “The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (Ibid.) The burden of proving unconscionability rests upon the party asserting it.” (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 126.) Unconscionability is a question of law. (Malone v. Superior Court (2014) 226 Cal.App.4th 1551, 1562.)

Most employment related arbitration agreements are procedurally unconscionable because they are presented on a "take-it-or-leave-it" basis. " 'The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.' " [Citation.] " 'Arbitration contracts imposed as a condition of employment are typically adhesive.' " [Citation.]" (Davis v. Kozak (2020) 53 Cal.App.5th 897, 906, disapproved on another ground in Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 505.)

"When arbitration is a condition of employment, there is inherently economic pressure on the employee to accept arbitration. This alone is a fairly low level of procedural unconscionability." (Alvarez v. Altamed Health Services Corp. (2021) 60 Cal.App.5th 572, 591.)

As the subject arbitration agreement does appear to be a condition of employment, there is a low level of procedural unconscionability. However, the Court does not find any substantive unconscionability.

The arbitration agreement is clear, is mutual, and it is not overbroad. The arbitration agreement will be enforced.

While REM requests that the Court dismiss the suit, without prejudice, the Court finds that it is appropriate to simply stay the action pending the completion of arbitration.

Judges

Judge Thomas Anderle

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